

CHAPTER 51.

An Act to provide for temporarily securing to producers of milk, by means of payments out of moneys provided by Parliament, a minimum return in respect of milk used in the manufacture of milk products; for conditionally requiring repayment to the Exchequer of the amount of such payments; for making, out of moneys so provided, payments for the purposes of improving the quality of the milk supply and increasing the demand for milk; for regulating the manner in which milk is described for the purposes of advertisement and sale; for imposing and conferring certain duties and powers on boards administering milk marketing schemes; and for purposes connected with the matters aforesaid. [31st July 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Payments from and to the Exchequer in respect of milk used for manufacture.

1. Where, by means of such evidence as may be prescribed, the board administering a milk marketing scheme satisfy the Minister—

Exchequer
payments
in respect of
milk sold
for manu-
facture.

- (1) that any quantity of milk produced in the area to which the scheme applies, being milk delivered in accordance with—

(a) a contract for the sale of milk by a registered producer otherwise than to, or through the agency of, the board, or

(b) a contract for the sale of milk by the board, either in their own right or as agents for a registered producer,

has, in any of the twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-four, and the beginning

of April, nineteen hundred and thirty-six, been used (elsewhere than at a farm) in manufacturing any milk product; and

- (2) that by virtue of the terms of the contract the net cost per gallon of the milk to the purchaser is less than the standard price for that month;

then, if the cheese-milk price for that month, as certified in accordance with this Act, is less than the standard price for that month, the Minister shall, out of moneys provided by Parliament, pay to the board, in respect of each gallon comprised in that quantity of milk, a sum equal to the difference between the said cheese-milk price or the net cost per gallon of the milk to the purchaser (whichever is the greater) and the said standard price.

Exchequer
payments
in respect
of milk used
for manu-
facture by
milk
marketing
boards.

2.—(1) Where, by means of such evidence as may be prescribed, the board administering a milk marketing scheme satisfy the Minister that any quantity of milk produced by a registered producer in the area to which the scheme applies has, in any of the twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-four, and the beginning of April, nineteen hundred and thirty-six, been used by the board in manufacturing any milk product, then if both the cheese-milk price for that month, as certified in accordance with this Act, and the appropriate manufacturing milk price are less than the standard price for that month, the Minister shall, out of moneys provided by Parliament, pay to the board, in respect of each gallon comprised in that quantity of milk, a sum equal to the difference between the said cheese-milk price or the said manufacturing milk price (whichever is the greater) and the said standard price.

(2) In this section the expression “the appropriate manufacturing milk price,” in relation to any milk which has, in any month, been used by the board administering a milk marketing scheme in manufacturing any particular milk product, means such sum as may be certified by the Minister to represent the net sum per gallon for which the milk so used by the board could, if it had been available for purchase otherwise than by the board, have been bought wholesale by any other person for use in that month in manufacturing that milk product.

(3) Whenever the board administering a milk marketing scheme request the Minister to deliver to

them a certificate for the purposes of this section in relation to milk used by the board in any month, it shall be the duty of the Minister to deliver that certificate to the board.

3.—(1) Where, by means of such evidence as may be prescribed, the board administering a milk marketing scheme satisfy the Minister that any quantity of milk produced by a registered producer in the area to which the scheme applies has, in any of the twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-four, and the beginning of April, nineteen hundred and thirty-six, been used by him in manufacturing cheese at a farm in his occupation, then if the cheese-milk price for that month, as certified in accordance with this Act, is less than the standard price for that month, the Minister shall, out of moneys provided by Parliament, pay to the board, in respect of each gallon comprised in that quantity of milk, a sum equal to the difference between the two prices aforesaid :

Exchequer
payments
in respect
of milk
converted
into cheese
at farms.

Provided that, as respects any particular milk marketing scheme, the Minister may from time to time by order direct that no sums shall be payable under this section to the board in respect of milk which has, in any month to which the order applies, been used by a registered producer in manufacturing cheese at a farm, unless the board satisfy the Minister that, at the beginning of that month, the registered producer had in his possession, in the area to which the scheme applied, not less than such number of milch cows as may be specified in the order; and the Minister may by order vary or revoke any previous order made by him under this proviso.

(2) An order under the proviso to the foregoing subsection may be made so as to apply to a specified month, or to a specified month and also to every subsequent month until the order is varied or revoked, and shall be made not less than fourteen days before the commencement of the month or of the first month, as the case may be, to which it is to apply :

Provided that, within four weeks from the commencement of this Act, an order may be made so as to apply to the month of April, nineteen hundred and

thirty-four, and any subsequent month down to, and including, the month of September, nineteen hundred and thirty-four.

Definition
of "cheese-
milk price"
and
"standard
price," and
certification
of cheese-
milk price.

4.—(1) For the purposes of this Act—

- (a) the cheese-milk price for any month shall be the excess over one penny three-farthings of the average of the prices per pound at which cheese such as is commonly known at the commencement of this Act as "New Zealand finest white" and "Canadian finest white" was sold wholesale in Great Britain during the immediately preceding month; and
- (b) the standard price for each of the six consecutive months falling between the end of March in any year and the beginning of the next following October shall be fivepence, and the standard price for each of the six consecutive months falling between the end of September in any year and the beginning of the next following April shall be sixpence.

(2) The Minister of Agriculture and Fisheries and the Secretary of State for Scotland, acting in conjunction, shall—

- (a) as soon as may be after the commencement of this Act, certify the cheese-milk price for the month of April, nineteen hundred and thirty-four, and for each subsequent month down to and including the month of August, nineteen hundred and thirty-four; and
- (b) as soon as may be after the beginning of the month of September, nineteen hundred and thirty-four, and of each subsequent month falling before April, nineteen hundred and thirty-eight, certify the cheese-milk price for that month.

(3) Every certificate given for the purposes of this section shall state the method by which the cheese-milk price certified in the certificate has been computed, and the Minister of Agriculture and Fisheries and the Secretary of State for Scotland shall cause the certificate to be published, as soon as may be, in such manner as they think best for informing persons concerned.

5.—(1) Where, in the case of any milk marketing scheme, any quantity of milk produced in the area to which the scheme applies—

Payments to Ex-chequer in respect of milk used in manufacturing milk products.

- (a) having been sold by a registered producer otherwise than to, or through the agency of, the board, or sold by the board either in their own right or as agents for a registered producer, is, in any of the twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-six, and the beginning of April, nineteen hundred and thirty-eight, used (elsewhere than at a farm) in manufacturing any milk product; or
- (b) having been produced by a registered producer, is, in any such month as aforesaid, used by the board in manufacturing any milk product;

then if the cheese-milk price for that month, as certified in accordance with this Act, exceeds the standard price for that month by more than one penny, the board shall, subject to the following provisions of this section, pay at the prescribed time to the Minister, in respect of each gallon comprised in that quantity of milk, a sum equal to the difference between the said standard price, increased by one penny, and the said cheese-milk price.

(2) If, in the case of any of the twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-six, and the beginning of April, nineteen hundred and thirty-eight, the cheese-milk price for the month, as certified in accordance with this Act, exceeds by more than one penny the standard price for the month, then, subject to the provisions of the next following subsection, the board administering any milk marketing scheme shall, at such time as may be prescribed, pay to the Minister the sum arrived at by multiplying the difference between the said standard price, increased by one penny, and the said cheese-milk price, by whichever of the following numbers is the greater, that is to say:—

- (a) one twenty-fourth of the total number of gallons of milk produced by registered producers in the area to which the scheme applies, being milk—
 - (i) which has, in the period between the end of March, nineteen hundred and thirty-four, and the beginning of April, nineteen

hundred and thirty-six, been used by those registered producers in manufacturing cheese at farms in their respective occupations; and

(ii) in respect of which sums have become payable under section three of this Act by the Minister to the board; or

(b) the total number of gallons of milk produced in that area by registered producers, being milk which has, in that month, been used by them in so manufacturing cheese as aforesaid.

(3) Subject to the following provisions of this Act which relate to the revocation of schemes, a board shall not be liable under this section—

(a) to pay any sum in respect of milk used in manufacturing cream, butter, cheese, milk powder or condensed milk, if no sum has become payable under the foregoing provisions of this Act to that board in respect of milk used in manufacturing cream, butter, cheese, milk powder or condensed milk, as the case may be; or

(b) to pay any sum in excess of the aggregate of the sums (if any) which have become payable to that board under the foregoing provisions of this Act.

(4) All sums payable under this section by a board to the Minister may be recovered by him as a debt due from that board to the Crown, and, when received by the Minister, shall be paid into the Exchequer.

Exchequer
payments to
Government
of Northern
Ireland in
respect of
milk used
for manu-
facture.

6.—(1) The Minister of Agriculture and Fisheries shall, as and when the Treasury may direct, pay out of moneys provided by Parliament to the Government of Northern Ireland—

(a) in respect of the year beginning on the first day of April, nineteen hundred and thirty-four, sums not exceeding in the aggregate two hundred thousand pounds; and

(b) in respect of the year beginning on the first day of April, nineteen hundred and thirty-five, such sum, if any, as may be agreed between the Treasury and the Government of Northern Ireland,

with a view to securing, in the case of milk produced in Northern Ireland which has, in any month of that year, been used in manufacturing cream or butter at premises registered under any Act of the Parliament of Northern Ireland relating to the marketing of dairy produce, that the sum per gallon payable in respect of that milk to the respective producers thereof is not less than the standard price for that month.

(2) The Secretary of State concerned with agriculture in Northern Ireland shall, with respect to each of the twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-six, and the beginning of April, nineteen hundred and thirty-eight, certify to the Treasury—

- (a) the total number of gallons of milk produced in Northern Ireland which have, in that month, been used in manufacturing cream or butter at premises registered under any Act of the Parliament of Northern Ireland relating to the marketing of dairy produce; and
- (b) the average price per gallon paid or payable in respect of that milk to the respective producers thereof;

and if the certificate shows that the said average price exceeds the standard price for that month by more than one penny, there shall, subject as hereinafter provided, become payable by the Government of Northern Ireland to the Exchequer of the United Kingdom, in respect of each gallon of that milk, a sum equal to the difference between the said standard price, increased by one penny, and the said average price :

Provided that there shall not be payable under this subsection a sum exceeding in the aggregate the amount of the sums paid under subsection (1) of this section to the Government of Northern Ireland.

(3) Any sum payable under this section by the Government of Northern Ireland shall be deducted from the Northern Ireland residuary share of reserved taxes.

7.—(1) It shall be the duty of the board administering any milk marketing scheme to comply with such directions (if any) as may be given by the Minister, being directions which appear to him, after consultation with the Treasury, to be necessary for ascertaining the amount,

Provisions
for enforce-
ing pay-
ments due to
Exchequer.

and securing the payment, of all sums payable under the foregoing provisions of this Act by the board to the Minister.

(2) Within the prescribed period after the end of each of the twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-six, and the beginning of April, nineteen hundred and thirty-eight, the board administering any milk marketing scheme shall send to the Minister a return in the prescribed form, signed by the person for the time being authorised to act as secretary of the board and by two members thereof, stating—

- (a) the quantity of milk in respect of the use of which in that month sums are payable by the board to the Minister under subsection (1) of section five of this Act; and
- (b) the quantity of milk produced by registered producers in the area to which the scheme applies, being milk which has, in that month, been used by those registered producers in manufacturing cheese at farms in their respective occupations;

and if the board fail to send such a return to the Minister in accordance with the requirements of this subsection, they shall be guilty of an offence, and shall, for each such offence, be liable on summary conviction to a fine not exceeding one hundred pounds, and to a further fine not exceeding one hundred pounds for every day on which the offence continues after conviction therefor.

(3) With a view to ascertaining whether any, and if so what, sums are payable under the foregoing provisions of this Act to the Minister by the board administering a milk marketing scheme, any person authorised in writing in that behalf by the Minister may, at any reasonable time, enter any premises occupied by the board and request any person whom he finds in the premises to produce to him such documents, and give him such other information, as he considers necessary.

(4) Every person who—

- (a) knowingly makes any false statement in giving any information which he is required for the purposes of the foregoing provisions

of this Act to give to the Minister or to a person authorised under subsection (3) of this section, or

- (b) obstructs any person so authorised as aforesaid in the exercise of his powers under subsection (3) of this section, or
- (c) fails, without reasonable excuse, to produce any document, or give any information, which he is requested under subsection (3) of this section to produce or give, or
- (d) being registered as a producer under any milk marketing scheme, fails, without reasonable excuse, to give to the board any information which he is required under the scheme so to give, or knowingly makes any false statement in giving any such information to the board,

shall be guilty of an offence and shall be liable, on summary conviction, to imprisonment for a term not exceeding three months or to a fine not exceeding one hundred pounds or to both such imprisonment and such fine :

Provided that paragraph (d) of this subsection shall not apply in relation to any information which a producer registered under a milk marketing scheme is required to give to the board with respect to the production, sale or use of any milk after the end of March, nineteen hundred and thirty-eight.

8.—(1) Every milk marketing scheme which provides for revoking any other such scheme shall contain provisions for securing that, for the purposes of the foregoing provisions of this Act,—

Provisions
as to revo-
cation of
schemes.

- (a) any sum which, at any time before the revocation takes effect, has become payable under the said provisions by the Minister to the board administering the scheme to be revoked (hereinafter referred to as “the existing board”), or by that board to the Minister, shall be treated as if it had, at that time, become payable, as the case may be, to or by the board by whom the revoking scheme is to be administered (hereinafter referred to as “the new board”); and

- (b) any sum paid in pursuance of the said provisions by the Minister to the existing board or by the existing board to the Minister shall be deemed to have been paid to or by the new board, as the case may be.

21 & 22
Geo. 5. c. 4.

(2) Where a milk marketing scheme administered by a board to whom any sums have become, or are to be deemed to have become, payable under the foregoing provisions of this Act is revoked before the beginning of April, nineteen hundred and thirty-eight, by order of the Minister under paragraph 2 of Part II of the First Schedule to the Agricultural Marketing Act, 1931, then, for the purpose of the winding up of the Board, the amount of the said sums (less the amount of any sums which, immediately before the revocation takes effect, have been, or are to be deemed to have been, paid under the said provisions by the board to the Minister) shall be deemed to be a debt due from the board to the Crown and provable by the Minister; and if, within one month from the date on which the revocation takes effect, the Minister publishes in the Gazette a notice stating that, by reason that proceedings are pending or for any other reason, the amount of the sums payable under the foregoing provisions of this Act to the board has not been ascertained, no distribution of the assets of the board shall be made in the winding up until the said amount has been ascertained.

(3) If, in a case where a milk marketing scheme is revoked in the manner mentioned in the last foregoing subsection, it appears to the Minister that the revocation of the scheme was demanded by the registered producers for the purpose of evading any liability to make payments to the Minister which, but for the revocation, the board might have incurred by virtue of the foregoing provisions of this Act, the Minister, within one month from the date on which the revocation takes effect, may by order direct that, notwithstanding any limitation imposed by the scheme on the amount which a contributor is liable to contribute to the payment of the debts and liabilities of the board and to the payment of the costs and expenses of the winding up, that amount shall be increased to such extent as appears to the Minister, after consultation with the Treasury, to be

necessary for enabling any debt due under the last foregoing subsection from the board to the Crown to be paid in full.

Provisions for improving the quality of the milk supply.

9.—(1) During a period of four consecutive years beginning on a day appointed by the Minister of Agriculture and Fisheries and the Secretary of State for Scotland, acting in conjunction, the said Minister or Secretary of State may, subject as hereinafter provided and in accordance with arrangements made by him and approved by the Treasury, expend out of moneys provided by Parliament such sums as he thinks fit, with the object of securing so far as practicable that the milk supplied for human consumption in England or in Scotland, as the case may be, is pure and free from the infection of any disease :

Payments
for securing
pure milk
supply.

Provided that—

- (a) the Minister of Agriculture and Fisheries shall not make any arrangements for the purposes of this subsection except after consultation with the Minister of Health; and
- (b) not more than seven hundred and fifty thousand pounds in the aggregate shall be expended under this subsection.

(2) Not later than the end of the period mentioned in the foregoing subsection, the Minister may, after consultation with the boards administering any milk marketing schemes approved by him which are for the time being in force, make an order for securing that where the board administering any milk marketing scheme approved by him are satisfied, with respect to any quantity of milk produced after the end of that period in the area to which the scheme applies, that it has been produced by a registered producer in such circumstances as the Minister may prescribe in the order with the object mentioned in the foregoing subsection, the board shall pay to that registered producer, in respect of each gallon comprised in that quantity of milk, such sum not exceeding one penny as may be specified in the order.

Any order made under this subsection may be varied or revoked by a subsequent order made in like manner as the original order.

(3) The Minister of Agriculture and Fisheries or the Secretary of State for Scotland shall, as soon as may be after any arrangements made by him have been approved for the purposes of this section by the Treasury, lay particulars of the arrangements before each House of Parliament.

Amend-
ment of
12 & 13
Geo. 5. c. 54.

10.—(1) The following section shall have effect in substitution for section three of the Milk and Dairies (Amendment) Act, 1922 :—

“ 3.—(1) The Minister of Health, after consultation with the Minister of Agriculture and Fisheries, may by order—

- (a) prescribe, in relation to milk of any description, such designation (hereinafter referred to as a ‘special designation’) as he considers appropriate; and
- (b) as respects any special designation, provide for the granting by the Minister of Health or local authorities of licences (hereinafter referred to as ‘milk licences’) authorising the use of that special designation; and
- (c) prescribe the periods for which, and the conditions (including conditions as to the payment of fees) subject to which, milk licences in general or milk licences of any particular class are to be granted;
- (d) provide for the revocation or suspension of a milk licence in the event of a breach of any condition subject to which the licence was granted; and
- (e) provide for entitling any person aggrieved by the refusal, suspension or revocation of a milk licence by a local authority to appeal to the Minister of Health; and
- (f) provide for such matters as are necessary for giving effect to, or are incidental to, or consequential on, any provisions contained in the order by virtue of the foregoing provisions of this subsection.

“(2) No person shall, for the purpose of the sale or advertisement of any milk,—

(a) use a special designation in any manner calculated to suggest that it refers to that milk, unless there is in force a milk licence authorising the use of that designation in connection with that milk; or

(b) refer to that milk by any such description, not being a special designation, as is calculated falsely to suggest either that the cows from which the milk is derived are free from the infection of tuberculosis or of any other disease, or that the milk is tested, approved or graded by any competent person.

“(3) In any proceedings taken by virtue of paragraph (b) of the last foregoing subsection, it shall lie on the defendant to prove the truth of any suggestion which, in the opinion of the court, his acts or conduct as proved by the prosecution are or is calculated to convey.”

(2) Section fourteen of the Milk and Dairies (Amendment) Act, 1922, (which provides that, in the application of that Act to Scotland, references to the Department of Health for Scotland shall be substituted in the Act for references to the Minister of Health) shall have effect as if at the end of paragraph (a) of that section there were inserted the words “and the Department of Agriculture for Scotland shall be substituted for the Minister of Agriculture and Fisheries.”

(3) Any order under section three of the Milk and Dairies (Amendment) Act, 1922, which is in force immediately before the commencement of this Act shall continue in force until revoked.

Provisions for increasing the demand for milk.

11.—(1) If the board administering a milk marketing scheme satisfy the Minister that, throughout any period determined by him, they have so exercised their powers under the scheme as to give effect to any arrangements, previously submitted by the board to, and approved by, the Minister, for increasing the demand for milk, the Minister may, subject as hereinafter provided, pay to

Contributions from Exchequer towards expenses of milk marketing boards.

that board out of moneys provided by Parliament such sum as he thinks fit, not exceeding one half of the amount of the expenses which are shown to his satisfaction to have been incurred by the board in giving effect to those arrangements in that period :

Provided that—

- (a) no sums shall be payable under this subsection in respect of any such expenses incurred by a board as appear to the Minister to be attributable to any time after the end of the period of two years from the date on which the first arrangements submitted by that or any other board are approved for the purposes of this section; and
- (b) not more than one million pounds in the aggregate shall be expended under this subsection.

(2) In ascertaining for the purposes of this section the amount of the expenses incurred by the board administering a milk marketing scheme in giving effect to such arrangements as aforesaid in any period, there shall be treated as part of those expenses such sum as may be certified by the Minister, with the approval of the Treasury, to be properly payable by way of compensation to that board by reason of the fact that milk has, in pursuance of the arrangements, been sold at reduced prices for consumption by such classes of persons and in such manner as may be specified in the arrangements.

(3) The Minister shall, as soon as may be after any arrangements have been approved by him for the purposes of this section in connection with a milk marketing scheme, lay particulars of the arrangements before each House of Parliament.

General and supplementary provisions.

Extension of
functions
of milk
marketing
boards.

12.—(1) Where any quantity of milk produced in the area to which a milk marketing scheme applies—

- (a) having been sold by a registered producer, has, in the month of April, nineteen hundred and thirty-four, or any subsequent month, been used (elsewhere than at a farm) in manufacturing any milk product; or

- (b) having been produced by a registered producer, has, in any such month as aforesaid, been used by the board in manufacturing a milk product ; or
- (c) having been produced by a registered producer, has, in any such month as aforesaid, been used by that registered producer in manufacturing cheese at a farm in his occupation ; or
- (d) has been produced or sold in any period by a registered producer and has been produced in circumstances determined by the Minister or by the board with the object of securing, so far as practicable, that the milk is pure and free from the infection of any disease ; or
- (e) has, in any period, been sold by a registered producer at a reduced price in accordance with arrangements approved by the Minister for the purposes of the last foregoing section ;

then, without prejudice to the effect of any order under section nine of this Act, the board may, notwithstanding anything in the scheme and subject to such conditions as they think fit, pay or allow to the registered producer, in respect of each gallon comprised in that quantity of milk, a sum of such amount as they may determine with respect to that month or that period, as the case may be.

(2) For the removal of doubts it is hereby declared that any power of the board administering a milk marketing scheme to determine the price at, below or above which milk produced in the area to which the scheme applies, or any kind, grade or description of milk so produced, may be sold by any registered producer, includes power to determine, in relation to milk so produced or any kind, grade or description of such milk, as the case may be, different prices by reference to the different purposes for which it is sold or used.

(3) The board administering any milk marketing scheme may from time to time determine the places or areas at, to or within which milk produced in the area to which the scheme applies, or any description or quantity of milk so produced, may be sold, or offered or consigned for sale, or delivered on sale, by any registered producer, and if any registered producer deals with any milk in contravention of any determination made by the board

under this subsection, then, subject to any provisions of the scheme which prescribe procedure in connection with the imposition and recovery of penalties, the board shall impose on, and recover from, that producer such monetary penalty as the board think just, not exceeding one hundred pounds or such greater sum (if any) as may be prescribed by the scheme in relation to such a contravention as aforesaid :

Provided that no determination shall be made under this subsection by any board except after consultation with such a committee as the Minister may have approved for the purpose as representing the interests of purchasers of milk by wholesale.

23 & 24
Geo. 5. c. 31.

(4) Where, in conformity with a milk marketing scheme, any contract whereby a registered producer undertakes to sell, otherwise than to, or through the agency of, the board, any milk produced in the area to which the scheme applies, purports to confer on the board any right to recover from the purchaser the whole or any part of any damages for which the purchaser may be liable under the contract in respect of a breach of warranty on his part, then, without prejudice to the effect of subsection (2) of section seventeen of the Agricultural Marketing Act, 1933, the board may enforce that right against the purchaser, notwithstanding that the board are not parties to the contract and notwithstanding that, as between the board and the purchaser, there is no consideration.

(5) The board administering any milk marketing scheme may enter into and carry into effect an agreement with the board administering any other such scheme, whereby the first-mentioned board, for such consideration and subject to such conditions as may be specified in the agreement,—

- (a) undertake that, during a period specified in the agreement, they will exercise their powers in such manner as may be so specified; or
- (b) undertake that, during a period specified in the agreement, they will make to the other board payments of such amounts and at such times as may be so specified.

(6) The provisions of any milk marketing scheme shall have effect as if the functions of the board under this Act were functions of the board under the scheme.

13.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say :— Interpretation.

“milk” means cows’ milk;

“milk marketing scheme” means a scheme under the Agricultural Marketing Act, 1931, for regulating the marketing of milk;

“milk product” means cream, butter, cheese, milk powder or condensed milk;

“the Minister,” “the board,” “registered producer” and “the Gazette” have the same meanings respectively as in the Agricultural Marketing Act, 1931;

“prescribed” means prescribed by regulations made, with the approval of the Treasury, by the Minister of Agriculture and Fisheries and the Secretary of State for Scotland, acting in conjunction.

(2) For the purposes of this Act a farm shall be deemed to include the farm house and all buildings occupied together with the farm, but not to include any premises which are for the time being approved as manufacturing premises by the board administering a milk marketing scheme.

14.—(1) This Act may be cited as the Milk Act, 1934. Short title and commencement.

(2) This Act shall come into operation on the fifteenth day of August, nineteen hundred and thirty-four.

CHAPTER 52.

An Act to make permanent certain temporary enactments relating to the relief of the poor in Scotland; and to make further provision with regard to such relief. [31st July 1934.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present